

Ethical Duties of Employees and Managers to Employers, Stockholders and Stakeholders.

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Abstract

This literature review explores the ethical duties employees and managers owe to their employers, particularly emphasizing the duty of loyalty, conflict of interest avoidance, and fiduciary responsibilities to stockholders. Using diverse perspectives from business ethics, law, management studies and biblical guidance, the review examines how these duties affect organizational integrity, transparency, and stakeholder trust. By analyzing legal frameworks, ethical theories, and case studies, this review highlights the importance of balancing corporate loyalty with ethical behavior. The findings underscore how fostering an ethical culture supports both organizational success and social responsibility in the long run.

Introduction

In modern business, ethical behavior among employees and managers is vital to organizational success, stakeholder trust, and social responsibility. Employees and managers, particularly those in leadership positions, hold considerable influence over company operations and public perception. They are bound by ethical and legal obligations to act in the best interest of their employer and the organization's stakeholders. This ethical duty, often referred to as the "duty of loyalty," entails prioritizing the employer's interests, keeping confidentiality, avoiding conflicts of interest, and protecting the company's reputation. The duty of loyalty serves as a foundational ethical principle that strengthens organizational integrity and reinforces trust among shareholders, employees, and clients (Donaldson & Preston, 1995).

This literature review explores employees' and managers' ethical responsibilities within organizational contexts. It examines key concepts such as loyalty, conflict of interest avoidance, confidentiality, and fiduciary responsibilities, drawing from various ethical theories and legal perspectives. The analysis also considers how these duties shape corporate culture, influence decision-making, and promote ethical consistency across business functions (Proverbs 11:1 - "A false balance is an abomination to the Lord, but a just weight is his delight"). The aim is to synthesize scholarly research on the ethical principles guiding employee and manager behavior, emphasizing the importance of aligning personal and professional ethics with organizational goals.

The Duty of Loyalty in Employment

The duty of loyalty is a fundamental ethical obligation that both employees and managers owe to their employer. Legally, this loyalty forms a fiduciary responsibility, compelling employees to act in the best interests of their organization while avoiding conflicts that could undermine the company's objectives or tarnish its reputation (Restatement of Employment Law, 2015). This duty plays a crucial role in keeping trust within an organization, reinforcing the commitment of employees and managers to uphold corporate integrity and prioritize the welfare of the organization over their personal interests.

Legal Foundations of the Duty of Loyalty

American law recognizes the duty of loyalty as a fundamental expectation, particularly for individuals in managerial or leadership positions. This duty mandates that they act without self-interest in a manner that could undermine the organization's objectives. Legal scholars assert that this obligation prevents actions that might harm the employer's interests, such as engaging in competing business ventures, disclosing proprietary information, or taking advantage of corporate opportunities for personal gain (Miller, 2016). The duty encompasses a variety of behaviors, ranging from prohibiting insider trading to discouraging business transactions that conflict with the organization's goals. Breaches of this duty by employees or managers can have profound consequences, including termination, legal liability, or financial penalties (Stone, 2007).

The legal framework that defines the duty of loyalty highlights its critical role in corporate governance. Laws that protect trade secrets, enforce non-compete agreements, and limit self-dealing are all mechanisms that uphold loyalty and ultimately preserve the integrity of the organization. These legal protections ensure that employees and executives align their actions with the company's objectives, fostering a culture of accountability and trust that is essential for long-term corporate success.

Ethical Underpinnings of Loyalty

The duty of loyalty is fundamentally supported by ethical theories that prioritize responsibility, trustworthiness, and moral integrity. From a deontological perspective, this duty is an intrinsic moral obligation that compels employees to act in good faith toward their employer, setting aside personal interests. According to Kantian ethics, which assesses actions based on moral duty rather than their outcomes, disloyal acts—such as pursuing conflicting personal interests—are inherently unethical (Bowie, 2017). This viewpoint regards loyalty as a commitment to uphold the organization's values and trust, which are crucial for fostering an ethical corporate culture.

Virtue ethics provides an additional perspective, positing that loyalty reflects an employee's character and alignment with core values such as honesty, integrity, and dedication (Sison & Ferrero, 2015). Within this framework, loyalty is seen not merely as a duty but as an indication of personal and professional integrity, aligning the individual's moral principles with the company's objectives. Employees and managers who demonstrate loyalty through their actions, rooted in ethical values, enhance the organization's ethical culture by making decisions driven not by personal gain but by a commitment to the company's mission and vision.

Challenges to Upholding Loyalty

The duty of loyalty is crucial but can also pose ethical dilemmas, particularly when personal, financial, or professional interests conflict with organizational objectives. The increase in remote work and freelance opportunities can blur these boundaries, making it more difficult for employees to address loyalty issues without compromising their professional integrity. Moreover, the pressure to achieve personal financial goals or advance in one's career may lead individuals to inadvertently prioritize self-interest over their commitments to the organization. These situations underscore the necessity for clear organizational policies and ethics training to help employees identify and resolve conflicts of interest while fostering a culture of loyalty and transparency.

Organizational Implications of Loyalty

Loyalty within an organization cultivates a cohesive and ethically grounded corporate culture. Such a culture not only enhances organizational stability but also fortifies the trust between the company and its stakeholders. Research indicates that employees who perceive loyalty and commitment among their peers are more likely to demonstrate pro-social behaviors, including collaboration, ethical decision-making, and mutual support during problem-solving efforts (Trevino & Nelson, 2017). Additionally, loyalty significantly contributes to lower turnover rates; committed employees are less inclined to pursue external job opportunities, which helps reduce hiring and training costs and ensures organizational continuity.

For managers, exemplifying loyalty through ethical behavior serves as a compelling model for their teams. Managerial loyalty involves guiding employees to act in the best interests of the company, fostering a transparent and supportive environment, and showing commitment to organizational goals. In this manner, loyalty not only influences individual behavior but also shapes the overarching organizational culture, promoting ethical consistency, enhancing team morale, and cultivating a corporate environment that values and sustains trust.

In closing

The duty of loyalty is fundamental to fostering a culture of trust and integrity within an organization. Legally underpinned and ethically founded, loyalty enhances corporate stability, encourages ethical decision-making, and nurtures a positive work environment where both employees and managers demonstrate accountability and dedication to the organization's success. "As per Ephesians 6:5-8 instructs servants/employees to obey their earthly masters with respect, sincerity and good will, as if serving Christ". By placing a high value on loyalty, companies can strengthen relationships with stakeholders, elevate ethical standards, and create a lasting, positive influence on organizational performance.

Section 2: Avoiding Conflicts of Interest

Definition and Types of Conflicts of Interest

Conflicts of interest arise when personal interests interfere with an employee's or manager's obligation to act exclusively in the best interest of the organization. These conflicts can manifest in several ways, such as self-dealing—where individuals exploit their positions to gain from organizational resources—and financial conflicts, including insider trading, external business ventures, or employment with rival firms (Boatright, 2014). Furthermore, conflicts may develop when employees or managers maintain personal relationships that could impact hiring, promotion, or business decisions. It is crucial to identify and mitigate conflicts of interest to uphold organizational transparency, trust, and ethical integrity, as such conflicts can lead to decisions that are misaligned with corporate objectives.

Ethical Implications

Conflicts of interest pose significant ethical challenges, as they impede impartiality, a crucial element for fair decision-making. From a deontological standpoint, both employees and managers have a moral responsibility to avoid situations that could compromise their ability to act solely in the organization's best interest (Donaldson, 2014). In this framework, the obligation to avoid conflicts aligns with the moral principles of honesty and integrity, where loyalty to the organization takes precedence over personal gain. Kantian ethics, which underpins deontological principles, asserts that employees should act in a manner that respects the trust placed in them by the organization, avoiding actions that could exploit this trust.

Conversely, consequentialist theories, which center on outcomes, emphasize that avoiding conflicts of interest is vital to preventing harm to stakeholders and preserving trust. Conflicts of interest can undermine trust among employees, stakeholders, and the public, thereby diminishing the organization's credibility and potentially resulting in reputational or financial damage (Driver, 2012). Consequently, consequentialist ethics advocates for transparency and fairness in business dealings, ensuring that organizational decisions prioritize the greater good and maximize positive outcomes.

Managing Conflicts of Interest

Effectively managing conflicts of interest requires the implementation of policies that establish clear expectations, promote transparency, and cultivate an ethical culture that proactively addresses potential conflicts. Comprehensive policies should outline what constitutes a conflict of interest, providing specific examples relevant to the organization's operations. Additionally, these policies must define the consequences for violations, thereby underscoring the importance of ethical standards and impartiality.

Transparency in disclosures is a critical component of conflict management. Organizations should develop transparent reporting systems that allow employees to disclose potential conflicts without fear of retaliation. This openness fosters accountability and ensures that conflicts are identified and resolved before they can compromise organizational integrity (Martin, 2011). By encouraging early disclosure, companies can cultivate a culture of openness that reflects their commitment to ethical conduct.

Ongoing ethical training is essential in helping employees and managers recognize and navigate potential conflicts of interest. Such training programs can address common scenarios, outline ethical decision-making frameworks, and clarify the steps needed to disclose conflicts. By reinforcing the organization's values, this training enhances employees' awareness and equips them with the knowledge to manage conflicts in a professional manner, aligning their behavior with company standards. When organizations invest in ethical education, they empower employees to internalize ethical principles, thereby reducing the risk of conflicts arising from ignorance or oversight.

The Role of Organizational Culture

Beyond policies and training, cultivating a strong organizational culture is essential for effectively managing conflicts of interest. An ethical culture upholds values such as honesty, integrity, and fairness, which encourages employees to act in the best interest of the organization. When leadership exemplifies ethical behavior, employees are more inclined to follow suit, fostering an environment where conflicts of interest are openly acknowledged and responsibly addressed. Research indicates that employees are more likely to adhere to ethical guidelines when they observe their managers upholding these standards, highlighting the critical role of ethical leadership in nurturing a culture of accountability and transparency (Trevino & Nelson, 2017).

Furthermore, a culture that emphasizes ethical integrity discourages employees from engaging in behaviors that could lead to conflicts of interest. When employees recognize that the organization prioritizes long-term integrity over short-term gains, they are more apt to align their actions with the company's ethical principles. "Prioritize integrity and honesty: The Bible emphasizes the importance of integrity and avoiding dishonest gain. Exodus 18:21 instructs leaders to select "capable men from all the people—men who fear God, trustworthy men who hate dishonest gain". This commitment to integrity not only strengthens trust within the organization but also supports ethical decision-making at all levels.

In closing

Ensuring the avoidance of conflicts of interest is crucial for upholding an organization's ethical integrity and safeguarding stakeholder trust. By establishing comprehensive policies, promoting transparency, offering continuous ethical training, and cultivating a culture that prioritizes

honesty and impartiality, organizations can effectively mitigate the risks tied to conflicts of interest. Proactively and openly addressing these conflicts demonstrates a commitment to ethical standards, ultimately enhancing the organization's reputation, stability, and long-term success.

Section 3: Confidentiality and Protection of Employer's Interests

Confidentiality as an Ethical Duty

Confidentiality is a fundamental ethical obligation intricately linked to loyalty, as it entails safeguarding sensitive organizational information from unauthorized disclosure. For both employees and managers, the protection of confidential information is vital for maintaining trust, preserving competitive advantages, and ensuring the integrity of the organization. This confidentiality encompasses several types of information, including proprietary data, trade secrets, client details, and strategic plans. Legal frameworks, such as trade secret laws and non-disclosure agreements, underscore the critical importance of confidentiality in protecting intellectual property and organizational strategies (Werhane & Freeman, 1997). By honoring confidentiality, employees fulfill their duty to act in their employer's best interests, demonstrating a commitment to both ethical and legal standards.

Moreover, confidentiality fosters organizational stability by creating an environment where employees feel secure in sharing information essential for business operations and innovation. The success of a company often hinges on the meticulous management of information, as unauthorized disclosures can result in competitive disadvantages, reputational damage, or loss of customer trust. Upholding confidentiality not only strengthens the relationship between employees and the organization but also cultivates a culture of respect and responsibility that is vital for long-term success.

Ethical Challenges and Implications

The ethical duty of confidentiality is closely aligned with deontological perspectives, emphasizing the importance of duty and respect for an employer's right to safeguard information. Kantian ethics upholds confidentiality as a moral obligation that must be honored, as to violate this obligation would be to betray the trust that employees are afforded by their employer (Bowie, 2017). However, maintaining confidentiality can also lead to ethical dilemmas, particularly when withholding information may cause harm to third parties or compromise an individual's moral integrity.

Employees may encounter ethical challenges when they possess confidential information that uncovers unethical or illegal activities within the organization. In such scenarios, the obligation to uphold confidentiality might conflict with the ethical responsibility to prevent harm or protect the public interest. This situation creates a moral tension between loyalty to the employer and the broader duty to ensure the welfare of others. Cases of whistleblowing, where employees disclose confidential information to expose wrongdoing, exemplify this ethical complexity. Ethical

theories such as utilitarianism, which prioritize the greater good, may justify breaching confidentiality in these instances if the harm prevented outweighs the duty owed to the employer (Driver, 2012).

Striking a balance between confidentiality and transparency is vital for maintaining ethical consistency. Transparency fosters openness and honesty in communication while still respecting the necessity of confidentiality. Organizations can promote transparency by implementing clear guidelines that outline when and how confidential information may be responsibly shared. These policies help employees understand the limits of confidentiality, enabling them to make informed decisions when faced with ethical conflicts. Thus, transparency and confidentiality can coexist, allowing organizations to uphold ethical standards while safeguarding sensitive information.

Practical Measures to Uphold Confidentiality

Organizations can implement several practical measures to uphold confidentiality effectively, reinforcing its position as a cornerstone of ethical conduct. First, establishing clear confidentiality policies and providing regular training can educate employees on the significance of safeguarding information and the repercussions of breaches. These policies should clearly define what types of information are deemed confidential, offer examples of unauthorized disclosures, and outline the procedures for reporting suspected breaches. By articulating these expectations, organizations not only promote accountability but also foster a culture of responsibility among their employees (Martin, 2011).

Second, companies should develop secure systems for managing and storing confidential information. Technological measures such as data encryption, secure access controls, and password protection are essential to minimizing the risk of unauthorized access and disclosure. These safeguards are particularly critical in today's digital business landscape, where information can be easily shared and stored across multiple platforms. By prioritizing data security, organizations reinforce the importance they place on confidentiality, thereby protecting both proprietary information and the trust of their employees.

Third, cultivating an ethical culture is vital for ensuring consistent respect for confidentiality. When leaders exemplify responsible information handling and address breaches swiftly, they set a standard for others to emulate. Ethical leadership fosters a culture of integrity and accountability, where employees feel a commitment to uphold confidentiality as part of their responsibilities to the organization. Research indicates that employees are more likely to adhere to ethical standards when they perceive their leaders as trustworthy and dedicated to ethical behavior (Trevino & Nelson, 2017). This ethical culture reinforces the notion that confidentiality is a shared responsibility within the organization.

In closing

Confidentiality is a crucial ethical obligation that safeguards an organization's interests, nurtures trust, and fosters loyalty between employees and employers. While confidentiality is essential for maintaining business integrity, it can also pose ethical dilemmas, especially when it conflicts with broader moral responsibilities or the need for transparency. Organizations that emphasize confidentiality through well-defined policies, secure practices, and a robust ethical culture are better equipped to navigate these challenges, ensuring the protection of sensitive information while upholding ethical consistency. "Proverbs 11:13 - 'A gossip betrays a confidence, but a trustworthy person keeps a secret.'" This verse directly contrasts gossiping with keeping confidences, praising those who maintain confidentiality." By promoting an environment that values confidentiality, companies reinforce their commitment to integrity, establishing a foundation of trust that enhances both organizational stability and ethical standards.

Section 4: Fiduciary Responsibilities to Owners, Stockholders and Stakeholders

Fiduciary Duties in Corporate Governance

Managers and executives hold fiduciary responsibilities that require them to act in the best interests of stockholders and stakeholders. These fiduciary duties include obligations of loyalty, care, and prudence, underscoring the necessity for leaders to prioritize stockholders' interests over their own. At the heart of these responsibilities lies the principle of financial integrity and transparency, which mandates that managers make decisions aimed at maximizing stockholder value, avoiding conflicts of interest, and ensuring the responsible use of corporate resources (Freeman, 2010). Upholding fiduciary duties is essential to corporate governance, as it instills confidence in stockholders that managers will act responsibly and protect their investments.

The duty of loyalty inherent in fiduciary responsibilities dictates that managers and executives must refrain from actions that could personally benefit them at the expense of stockholders. This includes avoiding insider trading, self-dealing, and any personal gains that conflict with the interests of the stockholders. Furthermore, the duty of care requires leaders to make informed decisions grounded in thorough analysis, as negligence or uninformed choices can jeopardize the company's financial well-being and diminish stockholder returns. When these fiduciary principles are honored, they foster a culture of accountability and reinforce the trust that stockholders place in corporate leadership.

Transparency is another vital component of fiduciary duties, allowing stockholders to evaluate the company's performance and comprehend how their investments are being managed.

Transparent communication encompasses accurate financial reporting, regular disclosures of significant risks, and frank reporting of both achievements and challenges. Such transparency not only enhances credibility but also shields the organization from potential legal and reputational risks that may arise from misleading information or insufficient disclosure. Research indicates

that companies that emphasize transparency tend to enjoy greater investor confidence, ultimately contributing to long-term success (Jensen, 2017).

Balancing Profit with Ethical Obligations

While fiduciary responsibilities have traditionally been linked to profit maximization, ethical business practices underscore the necessity of balancing profitability with broader social responsibilities. This approach represents a transition from a solely stockholder-centered perspective to one that incorporates the interests of all stakeholders, including employees, customers, communities, and the environment. Stakeholder theory posits that by considering the well-being of all affected parties, businesses can generate sustainable value that aligns with ethical standards while enhancing long-term profitability (Freeman et al., 2018). “Faithfulness and trustworthiness: The Bible emphasizes being faithful and trustworthy in managing resources entrusted to us. 1 Corinthians 4:2 states, “Moreover, it is required of stewards that they be found faithful”. Neglecting stakeholder needs might lead to short-term financial gains, but it can also result in reputational damage, customer loss, and regulatory repercussions over time.

The concept of corporate social responsibility (CSR) reinforces the notion that ethical obligations extend beyond mere financial performance. CSR promotes practices that generate positive societal impacts, such as environmental stewardship, fair labor practices, and community engagement. By aligning stockholder interests with CSR initiatives, companies can foster goodwill, strengthen community relationships, and mitigate the risks associated with unethical practices. Research indicates that organizations perceived as socially responsible are more likely to attract customers, retain talented employees, and enhance their brand reputation—all of which collectively contribute to financial stability (Carroll & Shabana, 2010).

This balanced approach is especially pertinent in today’s globalized business landscape, where companies encounter heightened scrutiny regarding their environmental footprint, supply chain ethics, and social responsibility. By adopting an ethical and socially responsible outlook, companies not only comply with legal requirements but also align themselves with shifting societal expectations. This alignment promotes corporate sustainability and provides a competitive advantage, as organizations that integrate CSR into their core strategies are better positioned to adapt to evolving regulatory environments and consumer demands.

Challenges in Balancing Fiduciary Duties and Ethical Obligations

Balancing fiduciary duties to stockholders with ethical obligations to other stakeholders presents several challenges. A prevalent tension arises when decisions that benefit stockholders in the short term may adversely affect other stakeholders or the environment. For instance, reducing costs by compromising environmental practices can lead to temporary boosts in profitability but may result in long-term liabilities, regulatory penalties, and damage to the company’s reputation.

This balancing act demands that managers carefully consider immediate financial outcomes against the potential effects on the company's long-term reputation and stakeholder relationships.

Furthermore, managers often encounter pressure from stockholders who emphasize short-term financial returns over sustainable growth. This pressure can create ethical dilemmas, forcing managers to choose between meeting quarterly financial targets and pursuing strategies that foster long-term value creation. To address these challenges, many companies embrace frameworks such as the triple bottom line (TBL), which assesses success based on people, planet, and profit. TBL encourages decision-makers to factor in social and environmental impacts alongside profitability, thereby promoting ethical consistency and mitigating the risks associated with strategies focused solely on profit (Elkington, 2018).

In closing

Fiduciary responsibilities within corporate governance are essential for safeguarding stockholders' interests and ensuring that corporate resources are utilized effectively. Nevertheless, a holistic approach to corporate governance requires a balance between these responsibilities and ethical obligations to all stakeholders. By embracing a stakeholder-oriented perspective, managers can generate sustainable value that benefits both shareholders and the wider community. Prioritizing transparency, ethical integrity, and social responsibility in fiduciary duties not only promotes organizational resilience but also strengthens stakeholder trust and aligns the company with modern expectations of corporate citizenship.

Conclusion

The ethical responsibilities of employees and managers toward their employers are fundamental to the stability, integrity, and long-term success of any organization. While these responsibilities are reinforced by legal obligations, they also encompass broader moral commitments such as loyalty, integrity, confidentiality, and the balanced consideration of stockholder and stakeholder interests. This review has demonstrated that upholding these ethical principles transcends mere compliance; it profoundly influences corporate culture, enhances transparency, and fosters sustainable business practices that resonate with both internal and external stakeholders.

The duty of loyalty emphasizes the importance of aligning personal interests with those of the organization, ensuring that employees and managers prioritize the company's welfare over individual gain. Likewise, avoiding conflicts of interest is essential for maintaining impartiality and nurturing a culture rooted in trust and accountability. Confidentiality safeguards competitive advantages and cultivates a respectful environment where sensitive information is managed responsibly. Moreover, fiduciary responsibilities guide leaders to act in the best interests of stockholders while also embracing a broader ethical commitment to social and environmental responsibility.

As organizations increasingly acknowledge the vital role of ethics in creating resilient and reputable businesses, it becomes crucial to cultivate a culture that prioritizes ethical behavior. By embedding these values into their core operations, companies can effectively navigate complex ethical challenges, build enduring relationships with stakeholders, inspire employee loyalty, and enhance public trust. “Do not be wise in your own eyes; fear the Lord and shun evil” (Proverbs 3:7). This encourages making decisions based on ethical principles rather than self-interest.” A commitment to ethical duties not only supports the organization’s vision for sustainable growth but also drives long-term success and reinforces its standing as a trusted and responsible entity in society.

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